

a standard 998 offer process common to Song-Beverly litigation of this kind. Nor has Plaintiff shown that this representation precluded counsel from accepting other work. As to contingent risk, Counsel's declaration does not persuasively distinguish the risk in this case from the risk inherent in any Song-Beverly contingency matter, where fee-shifting is mandatory and the primary contingency is the amount, not the entitlement, of recovery.

As to delay in payment, the Court recognizes this is a permissible basis for enhancement in an appropriate case. *Ketchum, supra*, 24 Cal.4th at p. 1138. However, the record reflects significant periods of inactivity in the litigation, including gaps of several months with no billed time, which tempers the weight the Court is inclined to give this factor. Accordingly, the Court declines to apply a multiplier.

Anticipated Time: Plaintiff seeks an additional \$1,500 “for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion.” A breakdown of the hourly rate and time to be spent is not provided in the brief or the supporting declaration, so the Court cannot make a determination on the reasonableness of the amount requested. Additionally, no reply brief has been filed by the deadline set forth in CCP § 1005. Therefore, the additional \$1,500 will not be awarded.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). The moving party bears the burden of establishing that claimed costs were reasonably and actually incurred. Plaintiff has provided a detailed table of \$5,164.82 in costs and expenses at Exhibit 1 to the Declaration of Payam Shahian (page 30). Defendant objects to the costs as not sufficiently detailed. The Court finds that the costs are sufficiently detailed and are recoverable, with the exception of \$545.00 paid to Veritext on April 14, 2025 for “California Region for Attending Hearing on Plaintiff’s Motion to Set Aside Dismissal,” for the same reasons discussed above with respect to the attorney fee recovery on the motion to set aside dismissal. Therefore, Costs in the amount of \$4,619.82 are awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$19,920.00 (49.8 hours at \$400 per hour) and costs of \$4,619.82 are awarded, for a total of \$24,539.82. A proposed order has been lodged and will be modified.

U.S BANK NATIONAL ASSOCIATION VS. HASTINGS, ET AL.

CASE NUMBER: 24CV-0205776

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 4, 2026, to Plaintiff and counsel for failure to appear on May 26, 2026, failure to timely prosecute, and failure to comply with local rules regarding a status update. Plaintiff has filed a late status statement indicating that the matter has been on a loss mitigation hold. Plaintiff also states the failure to appear was inadvertent. Plaintiff requests an additional 90 days to resolve this matter. Today’s hearing on the Order to Show Cause is continued to **Monday, October 19, 2026 at 9:00 a.m. in Department 64**. If default judgment has not been requested by that date, Plaintiff is ordered to file a status statement at least five court days prior to the hearing. No appearances are necessary on today’s calendar.